TICHAWONA MUCHINJIKO
and
THE MINISTER OF LOCAL GOVERNMENT
AND PUBLIC WORKS
and
CHIEF SVOSVE N.O.
and
BEAVEN MAKWARIMBA
and
THE PROVINCIAL ASSEMBLY OF CHIEFS,
MASHONALAND EAST

HIGH COURT OF ZIMBABWE
MAMBARA J
HARARE; 20 and 22 May 2026

Opposed Application

J Chikura, for the applicant
W. Mandinde, for the 3rd respondent

MAMBARA J:

[1] This is an application for review and declaratory relief arising from a dispute concerning the Makwarimba headmanship under Chief Svosve in Wedza. The applicant seeks, among other relief, an order declaring the nomination of the Tozvireva household null and void, setting aside the appointment of the third respondent, BEAVEN MAKWARIMBA, as Headman Makwarimba, and remitting the matter for a fresh nomination process.

[2] The application is opposed by the third respondent. The first and fourth respondents did not meaningfully engage the merits before this court. The second respondent, Chief Svosve N.O., filed a consent to judgment in which he indicated that the matter ought to be revisited. The third respondent, however, raised a point in limine that this court has no jurisdiction to determine the dispute because the Constitution provides a specific mechanism for the resolution of disputes concerning the appointment of traditional leaders.

[3] The matter falls to be determined on that preliminary point. It is not necessary, and it would be improper, for this court to decide the competing claims regarding the customary rotational system, the eligibility of the various houses, the alleged exclusion of the

Muchinjiko household, or the propriety of the third respondent's appointment. Those are matters of substance reserved for the constitutional and statutory institutions charged with resolving traditional leadership disputes.

[4] The applicant's case is that the nomination and appointment process disregarded local custom, excluded certain houses, ignored a pending objection, and imposed a candidate who allegedly did not enjoy majority support within the Makwarimba clan. The third respondent disputes that version. He contends that the applicable custom restricts succession to certain houses and that his appointment was made in accordance with the Traditional Leaders Act [*Chapter 29:17*]. That dispute is plainly a headmanship dispute.

[5] During the hearing, and without entering into the merits, I enquired from the representative of Chief Svosve who was present in court as to the status of the matter before the Mashonaland East Provincial Assembly of Chiefs. The explanation given was that, when the matter was tabled before that Assembly, Chief Svosve was unable to attend because he was indisposed. That explanation differs from the impression created in some of the papers that the Chief refused to have the matter discussed and thereby caused a stalemate. I do not make a factual finding on that issue. I record it only because it confirms that the matter is not beyond the reach of the constitutional mechanism. It can and should be revisited by the Assembly.

[6] To his credit, Chief Svosve filed a consent indicating that the matter should be reconsidered. That stance is constructive. However, consent cannot confer jurisdiction where the Constitution has allocated the resolution of the substantive dispute elsewhere. A court cannot grant a declaratory order merely because one of the parties consents to it if the order would require the court to determine a traditional leadership dispute that must first be dealt with under s 283 of the Constitution.

[7] Section 283 of the Constitution provides the framework for the appointment and removal of traditional leaders. In relevant part, it provides that an Act of Parliament must provide for the appointment, suspension, succession and removal of traditional leaders, and for the resolution of disputes concerning those matters. It then states that disputes concerning the appointment, suspension and removal of traditional leaders must be resolved by the President on the recommendation of the provincial assembly of Chiefs through the Minister responsible for traditional leaders.

[8] The language of s 283 is deliberate. Traditional leadership disputes are not ordinary civil disputes in which the court should readily decide who is, or is not, the proper occupant of a traditional office. They involve custom, lineage, community acceptance, family history and the integrity of traditional institutions. The Constitution assigns the first responsibility for resolving those matters to traditional leadership institutions and ultimately to the President of the Republic.

[9] This position has been explained in a number of decisions. In *Elias Gambakwe & 3 Ors* v *Herbert Chimene & 3 Ors* HH 465/15, UCHENA J held that s 283(c)(ii) is peremptory and that disputes concerning the appointment of traditional leaders must be resolved by the President on the recommendation of the provincial assembly of Chiefs through the responsible Minister.

[10] In Zvavikura Shumba & 9 Ors v Rueben Mupasi Marinda & 2 Ors HH 79/18, MUSHORE J also emphasized the role of traditional leadership institutions and the internal remedies available through the National Council of Chiefs and the provincial assemblies of Chiefs. The court warned against litigants prematurely approaching the High Court before the constitutional mechanism has been allowed to function.

[11] The Supreme Court has adopted a nuanced approach. In *Bernard Marange* v *Zvidzai Marange & Ors* SC 01/21, PATEL JA held that s 283 does not, by itself, constitute an absolute ouster of the High Court's review jurisdiction. The court may still review administrative conduct for illegality, irrationality or procedural impropriety. However, the Supreme Court was equally clear that courts are ill-equipped to determine the substance of customary succession disputes and should not substitute themselves for the competent traditional and executive authorities. Where the matter concerns the substantive resolution of a traditional leadership dispute, the proper course is referral to the provincial assembly for recommendations to be submitted through the Minister to the President.

[12] In *Rutsate Rutsate* v *Ndaveni Wedzerai and Others* SC 45/22, the Supreme Court reiterated that s 283 created a domestic resolution mechanism for traditional leadership disputes. Although the High Court's inherent jurisdiction is not lightly ousted, the constitutional design requires deference to the institutions specifically charged with resolving such disputes.

[13] I recently had occasion to deal with the same constitutional scheme in *Chigodora and Others* v *Murwira and Others* (323 of 2025) [2025] ZWHHC 323. The principle stated there applies with equal force here. The High Court should not pre-empt or usurp the substantive decision that the Constitution has entrusted to traditional leadership institutions and, ultimately, to the President. The proper forum remains the provincial assembly of Chiefs and the President acting through the Minister responsible for traditional leaders.

[14] The relief sought in this application would require this court to declare the nomination of one house invalid, set aside the appointment of the third respondent, and direct a fresh process based on a particular understanding of Makwarimba custom. That is not a narrow procedural review. It is, in substance, an invitation to this court to resolve the headmanship dispute. The court has no jurisdiction to grant that declaratory relief at this stage.

[15] The applicant's complaints may be serious. They may require proper investigation. They may also require the Assembly to hear the relevant houses, consider the applicable custom, and make a reasoned recommendation through the Minister to the President. But those questions are not for this court to decide on the merits in the present application.

[16] The third respondent was correct to raise the issue of jurisdiction. Once that issue is upheld, the matter must be resolved without entering into the merits. I therefore make no finding on whether the Muchinjiko household was excluded, whether the rotational system was violated, whether the Tozvireva household was properly nominated, or whether the third respondent's appointment should ultimately stand. Those issues remain open for determination under s 283.

[17] It is proper that the matter be placed back before THE PROVINCIAL ASSEMBLY OF CHIEFS, MASHONALAND EAST. That Assembly must consider the dispute and make its recommendations through the Minister responsible for traditional leaders for onward transmission to the President, as contemplated by s 283 of the Constitution. Nothing in this judgment should be read as endorsing or invalidating the third respondent's appointment.

[18] On costs, this is a traditional leadership dispute involving family and community structures. The second respondent has taken a constructive position by accepting that the matter should be revisited. The applicant approached the court under a mistaken view of the

appropriate forum. The third respondent has succeeded on the point in limine. In the circumstances, a punitive costs order is not warranted. Each party should bear its own costs.

[19] In the result, it is ordered as follows:

The point *in limine* raised by the third respondent be and is hereby upheld.

The application for review and declaratory relief be and is hereby dismissed.

The dispute concerning the appointment of Headman Makwarimba is referred back to THE PROVINCIAL ASSEMBLY OF CHIEFS, MASHONALAND EAST for consideration and for onward recommendations through the Minister responsible for traditional leaders to the President of the Republic of Zimbabwe in terms of s 283 of the Constitution.

Each party shall bear its own costs.

MAMBARA J……

Hatinahama & Associate, applicant's legal practitioner
Makiya & partners, 3rd respondent's legal practitioners.